

SEASPRAY CONDOMINIUM ASSOCIATION ELECTION PROCEDURES

When the second notice of election is given to the unit owners, the association must provide each unit owner with:

- A. One **Ballot** for **each unit** owned by that owner
- B. One small **Ballot Envelope** for **each Ballot** (Marked: **Envelope #1**)
- C. One larger **Ballot Return Envelope** (Marked: **Envelope #2**)
- D. One **pre-addressed return envelope** (Marked: **Envelope #3**) in which the above can be mailed to the Association

The inner small Ballot Envelopes and the larger Ballot Return Envelopes are for returning the completed ballots and ensuring secrecy in voting.

- Each smaller, inner **Ballot Envelope (Envelope #1)** is to contain only one completed ballot and is not to have any identifying markings on it.
- The larger **Ballot Return Envelope (Envelope #2)** must have a place for the name of the designated voter, the unit identification and the voter's signature on the outside.
- **Envelope #3** is to be pre-addressed to the Seaspray Condominium Association.
- Once the eligible voter completes the ballot the voter places it inside the inner **Ballot Envelope (Envelope #1)**, and the voter seals it.
- The inner **Ballot Envelope** is then placed inside the larger **Ballot Return Envelope (Envelope #2)**, and the voter seals it.
- The **Ballot Return Envelope** containing the Ballot Envelope is then inserted into the pre-addressed **Envelope #3** for mailing to the Association.

ELECTION PROCEDURES

All ballots, whether submitted prior to the election or turned in at the election must be handled by an impartial committee at the election meeting. The **Boards of Directors will select a minimum of three owners for the election committee**. The impartial committee, appointed by the board of directors, must not include current board members or their spouses, officers or their spouses or candidates for the board or their spouses.

The election of the board members must take place the same day and place as the annual meeting.

A quorum is not required to hold the election; however, at least 20 percent of the eligible voters must cast ballots in order for the election to be valid.

SEASPRAY CONDOMINIUM ASSOCIATION ELECTION PROCEDURES

The association must have additional blank ballots available at the election for distribution to eligible voters who have not yet voted. These ballots must be handled in the same manner as if previously submitted, using both the inner **Ballot Envelope (Envelope #1)** and outer **Ballot Return Envelope (Envelope #2)** and signing the exterior of the outer envelope.

As the first order of business at the election meeting the ballots not yet cast are collected.

- The committee must check the signature and unit identification on the outer envelope against a list of qualified voters.
- When the voter's name is found on the list, the voter's name is checked off as having voted.
- Any outer envelope not signed by someone on the list of eligible voters is marked "disregarded" and any ballots inside it are not counted.

After all of the envelope information has been verified and the eligible voters' names checked off the roster, the outer envelopes may be opened by the impartial committee.

- As soon as the first outer envelope is opened the polls must close and no more ballots may be accepted.
- The inner envelopes are first removed from the outer envelopes (that were not disregarded) and placed in a receptacle.
- The committee may move to the rear of the meeting room to conduct the count.
- Then the inner envelopes are opened, and the ballots are removed and counted in the presence of the unit owners.
- Any inner envelope containing more than one ballot is marked "disregarded" and the ballots contained inside are not counted. Once the ballots are anonymously separated from the inner ballot envelope, the committee may affix discrete markings to each individual ballot to assist in the tabulation of the votes.
- The impartial committee counting the votes shall designate a person to physically count and record the votes. The remaining two members shall act as observers to assure an accurate counting and recording of the votes by the designated counter.
- The record of the vote count may be by hand on paper or on a computer spreadsheet.

SEASPRAY CONDOMINIUM ASSOCIATION ELECTION PROCEDURES

- Once the counting and recording of the votes is completed, the committee shall provide a written or printed record of the vote count with their attesting signatures to the meeting Manager for delivery to the body and announcement of the results.
- The record of the vote shall remain part of the official records of the Association as provided by law and by-laws.

Envelopes One (1), Two (2) & Three (3) shall be retained along with any recording documents of the election including ballots, tally sheets, owner verification lists and ballot receipt verification. All envelopes & election material shall be retained as official records of the Association for one year or until a subsequent election, whichever is later.

* * * * *

TIEBREAKER

In the event of a tie the association must conduct a runoff election for the candidates who tied unless the bylaws provide a different method for deciding tie votes. If a runoff election is required it must be held not less than 21 days or more than 30 days after the date of the election at which the tie occurred. Within seven days of the election at which the tie vote occurred the board must mail or personally deliver to the voters a notice of the runoff election. The notice must inform the voters of the date the runoff election is scheduled to occur, include a ballot conforming to the requirements of the regular election ballot and include copies of any candidate information sheets previously submitted by the candidates involved.